

24STCV27560 24STCV27560

County: los-angeles

Division: Civil Law and Motion

Department: 408

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Case Number: 24STCV27560 Hearing Date: August 12, 2026 Dept: 408

Petitioner Yasmin Chavarria's Petition

to Approve Minor's Compromise of Pending Action [i.e., as to Isabel Franchesca Lira] is GRANTED.

I.

BACKGROUND

On October 22, 2024, Plaintiffs Yasmin Chavarria, Jacob Leon, and Isabel Lira ("Plaintiffs") filed a complaint against Defendants Yosemite Apartment Investments, LLC ("Yosemite") and I.C.

Property Management & Investment Corp. ("I.C.", collectively "Defendants") alleging causes of action for:

1.

Breach

of Warranty of Habitability (Violation of Civil Code § 1941.1);

2.

Breach

of Warranty of Habitability (Health & Safety Code § 17920.3);

3.

Breach

of Warranty of Habitability (Violation of Civil Code § 1942.4);

4.

Negligence

– Premises Liability/Failure to Warn/ Negligence Per Se;

5.

Nuisance;

6.

Intentional

Infliction of Emotional Distress;

7.

Breach

of Contract;

8.

Unfair

Business Practices (Violation of Business and Professions Code § 17200, et. seq.);

and

9.

Fraudulent

Concealment.

On December 6, 2024, Yosemite filed an answer to Plaintiffs' complaint.

On January 6, 2025, I.C. filed an answer to Plaintiffs' complaint.

On May 13, 2026, Plaintiffs filed a Notice of Settlement of Entire Case.

On June 1, 2026, Plaintiffs filed this Petition to Approve Minor
Compromise. No opposition or other responsive pleading has been filed.

II.

LEGAL STANDARD

Court approval is

required for all settlements of a minor's claim. (Prob. Code §§ 3500,
3600, et seq.; Code Civ. Proc., § 372.)

California Rules of Court Rule 7.950 provides that a petition "must be
verified by the petitioner and must contain a full disclosure of all
information that has any bearing upon the reasonableness of the compromise."
(Cal. Rules of Court, rule 7.950.) Rule

7.950 states that the Petition must be filed on a completed Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability (Form MC-350). (Ibid.)

III.

DISCUSSION

Petitioner

Yasmin Chavarria ("Petitioner") seeks court approval of a settlement between minor claimant Isabel Franchesca Lira ("Claimant") (DOB: 2/22/11) and Defendants in the total amount of \$10,000.00. (Petition, ¶ 10.) Petitioner is Claimant's parent and guardian ad litem.

The petition is executed by Petitioner. The action arose from bed bug bites at Plaintiffs' rental property. (Id., ¶ 4.) Claimant sustained injuries for bed bug bites. (Id., ¶ 6.) Claimant has recovered completely. (Id., ¶ 8.)

Petitioner seeks approval of \$2,500.00 in attorney's fees to be taken from Claimant's settlement. (Petition, ¶ 13a.) This equates to 25% of Claimant's total recovery. Petitioner has attached a declaration from Counsel Brain J. Virag. (Virag Decl., ¶¶ 3-10; Petition, ¶ 13A.) The court has reviewed the declaration of Counsel and believes that 25% is an appropriate percentage for attorney's fees here.

The net balance of proceeds for Claimant is \$7,500.00, which will be deposited into a blocked account incurring interests until Claimant's 18th birthday when payment will be disbursed. (Petition, ¶ 18(b).) The court finds the settlement is fair and reasonable.

Accordingly, the petition is granted.

IV.

CONCLUSION

Petitioner Yasmin Chavarria's Petition to Approve Minor's Compromise of Pending Action [i.e., as to Isabel Franchesca Lira] is GRANTED.